

Court No. - 34

Case :- WRIT - C No. - 33426 of 2019

Petitioner :- Executive Engineer (Distribution) Electricity Distribution Division
And Another

Respondent :- Presiding Officer Electricity Consumer Grievance Redressal
Forum And Another

Counsel for Petitioner :- Suman Kumar Yadav

Hon'ble Sudhir Agarwal,J.

Hon'ble Rajeev Misra,J.

1. Heard Dr. Suman Kumar Yadav, learned counsel for petitioner.
2. This writ petition has been filed Executive Engineer (Distribution) Electricity Distribution Division, Dadanagar (KESCO), Kanpur Nagar assailing order dated 26.07.2019 passed by Electricity Consumer Grievance Redressal Forum (hereinafter referred to as "Forum") holding that cumulative bill issued to consumer for a sum of Rs.32,93,796/- on the ground that inspection was made on 02.02.2018 and C.T. of main meter was found missing, therefore, assessment was made for period of 26 months, since, C. T. of main meter was found missing in the Meter Reading Inspection Report (hereinafter referred to as "MRI Report") for last 26 months, is not correct and legal.
3. Forum has held that aforesaid bill was not in accordance with procedure prescribed in Electricity Supply Code, 2005 (hereinafter referred to as "Code, 2005"); provisions contained in Para 5.7 (g) were not complied with and therefore, petitioner is directed to raise bill of consumer i.e. respondent-2 without any penalty/surcharge and compute consumption of electricity actually shown in the meter.
4. Learned counsel for petitioner submitted that C.T. of main meter was found missing in the raid conducted on 02.02.2018. However, he could not explain, if said C.T. of main meter was found missing in MRI report for the last 26 months then in the very first report, if the said defect was shown, why it was not detected, enquired and appropriate action was taken. He also could not show that C. T. of main meter which was found missing, if was further tested or checked to find out the defect and what was the reason for its missing. Nothing could be shown by petitioner in this regard. Correctness of meter was central part of

dispute and if there was any reason to doubt correctness of meter reading recorded in the meter, it was incumbent upon petitioner to follow the procedure prescribed for checking of meter, raising bill of assessment in respect of defective meter, if so found and that too after giving opportunity to consumer. Meter has to be checked in presence of consumer and if the consumer demands, the matter has to be referred to Chief Administrative Inspector.

5. Learned counsel for petitioner could not show that such procedure was followed. Thus additional demand bill was raised without giving opportunity to petitioner and following procedure prescribed in Code 2005.

6. In view thereof, we find no merit in this petition and it is dismissed accordingly.

Order Date :- 19.10.2019

Manish Himwan